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## Introduction

I approached this project knowing that I wanted to familiarize myself further with the *Restoule* case, as I wanted to take the opportunity to learn more about the law of treaty interpretation and the history of settlement in Ontario. This paper will briefly summarize some of the main events in Restoule leading up to the 1850 signing of the treaties, before providing an explanation of the submitted art piece.

In 2015, the Huron and Superior Anishinabek submitted to the Ontario Superior Court that the annuities payments of the Robinson Huron Treaty, and the Robinson Superior Treaty -both signed in 1850 ('The Robinson Treaties' or 'the Treaties') – were subject to compensation that was tied to the ongoing value of the land and what was extracted from it, rather than a one-time fixed sum, which had not been increased since 1875, where it had amount to a mere \$4 per person a year. The clause of the Treaties in question is referred to in the litigation as 'the Augmentation Clause'. I have included it here for ease of reference;

[T]hat for and in consideration of the sum of two thousand pounds of good and lawful money of Upper Canada to them in hand; and for the further perpetual annuity of five hundred pounds, the same to be paid and delivered to the said Chiefs and their Tribes.... The said William Benjamin Robinson, on behalf of Her Majesty, who desires to deal liberally and justly with all Her subjects, further promises and agrees that in case the territory hereby ceded by the parties of the second part shall at any future period produce an amount which will enable the Government of this Province, without incurring loss, to increase the annuity hereby secured to them, then and in that case the same shall be augmented from time to time, provided that the amount paid to each individual shall not exceed the sum of one pound Provincial currency in any one year, or such further sum as Her Majesty may be graciously pleased to order..”

As the above clause outlines, the initial payment was for a total of £4,000 to the “Chiefs and their Tribes” as well as annuity payments of £600 for the Huron Anishinabek and £500 for the Superior Anishinabek, which, based on the population at that time, came out to \$1.70 and \$1.60 for each person – compensation for the ceding of a territory larger than the country of France.<sup>1</sup>

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<sup>1</sup> Article found here: <https://anishinabeknews.ca/2019/10/22/robinson-huron-and-superior-treaty-trial-enters-phase-2/>

The case is remarkable not just for the immensity of the claim, which involves a total of 24 First Nations.<sup>2</sup> It is also for the way it was conducted. After a significant case-management discussion beginning in the summer of 2015, arguments were heard over two weeks of trial in four different locations across the territory, including in the communities of Fort William (Thunder Bay), Sudbury, Manitoulin Island and Garden River First Nation. It was also live-streamed in order to facilitate access to the court process, particularly for the members of the remote communities of Whitesand First Nation and Red Rock First Nation.<sup>3</sup> The evidence presented at trial was comprised of eleven qualified experts, each with ‘extensive reports’, four Elders and three Chiefs. The topics spanned ‘the conditions, culture, geopolitical relations and beliefs’ of both the Anishinabek and the imperial government of the United Kingdom. The expert reports alone were suggested by Judge Hennessey prior to trial to possibly be the best curated collection of the history of the events ever assembled.<sup>4</sup>

Over the course of the trial, from September to June, sacred fires were kept across the territory, and Elder Leroy Bennett of Sagamok First Nation Anishinabek First Nation conducted smudge, Eagle Staff and pipe ceremonies as well as offering teachings to those who asked.<sup>5</sup> The Court parties participated in Sweat lodge ceremonies, Pipe ceremonies, Eagle Staff and Eagle Feather

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<sup>2</sup> Ibid.

<sup>3</sup> While the decision to broadcast was made within the case management context, Judge Hennessey delivered written reasons on the broadcast issue, and spoke to the role that courts play in reconciliation, and to the fact that the proceedings would be of great interest to both Indigenous and non-Indigenous in Ontario, who are seeking to make sense of their treaties and ongoing responsibilities. [Restoule Broadcast Decision] located at: <https://static1.squarespace.com/static/58619081ff7c506c99486b12/t/5a50719253450aea17ea1936/1515221408595/Restoule+v.+Canada+%28Attorney+General%29+2018+ONSC+114+Decision+on+Broadca....pdf> at para 7

<sup>4</sup> Ibid, para 6

<sup>5</sup> *Restoule* – para 608

presentations as well as Feasts, where teachings of the role of the sacred fire, medicines and the meaning and significance of certain ceremonies were shared.

The treaties were signed against a backdrop of insistent colonial encroachment into the Upper Great Lakes. While in the first decades of colonization the Upper Great Lakes region was considered undesirable territory for settlement, this began to change as immigration increased and the value of mineral resources of the region became apparent. Settlers coming to the area were occupying land counter to the terms set out in the Royal Proclamation, and mining had begun to take place. The Anishinabek, who had been participating in the colonial economy through the fur trade began to experience an even the decline of wildlife - to the point where even subsistence livelihoods would not be possible for the next generation.<sup>6</sup> Expert evidence supports that ‘Anishinabek leaders engaged in what might now be called intensive government relations and advocacy work to demand recognition for their claim to the land and to protest what they believed was the ongoing, illegal use and occupation of Anishinabek land.’<sup>7</sup>

Chief Shingwakonse – a prominent Anishinabek chief who was also a War Chief in the War of 1812, played a key part in this advocacy, and was a widely noted a skilled political negotiator and powerful leader. Much of the record draws from his correspondence in the 1840s. I was particularly struck by the excerpt of a letter dated June 10, 1846, where he writes;

I see Men with large hammers coming to break open my treasures to make themselves rich & I want to stay and watch them and get my share. Great Father – The Indians

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<sup>6</sup> Restoule at para 117

<sup>7</sup> Ibid, para 123

elsewhere get annuity for lands sold if ours are not fit in most places for cultivation they contain what is perhaps more valuable & I should desire for sake of my people to derive benefit from them..... I want always to live and plant at Garden River and as my people are poor to derive a share of what is found on my Lands.<sup>8</sup>

This advocacy continued for years as the environmental situation, and the living conditions of the Anishinaabe worsened. In October 1848, the Chief Shingwaukonse and Chief Peau de Chat's address to Governor General Anderson stated that "the destruction of the landscape had driven the game from the hunting grounds and the people have been left to starve and brought up their right to profit from the mines, and the need of their right to be protected by the Crown." They again asserted sovereignty over the land, and raised the issue of their right to the revenue generated from resource exploitation;

The Great Spirit, we think, placed these rich mines on our lands for the benefit of his red children, so that their rising generation might get support from them when the animals of the woods should have grown too scarce for our subsistence. We will carry out, therefore, the good object of our Father, the Great Spirit. – We will sell you these lands, if you give us what is right – at the same time, we want pay for every pound of mineral that has been taken off of our lands, as well as for that which may hereafter be carried away.”<sup>8</sup>

Seven months later, on April 21, 1849 Chief Shingwakonse retained counsel, who writes to the Government again on their behalf, regarding "the occupancy by whites of certain portions of country claimed by them" and explains that by "selling locations to individuals before having had some treaty with the Indians" the Government has "created much discontent".<sup>9</sup>

That summer of 1849, Chief Shingwaukonse, Chief Nebenaigoching, and a warrior named Menissinawenninne travelled to Montreal to meet with Lord Elgin and the Montreal Gazette published the written address, which spoke of the unjust sale of land to mining companies and

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<sup>8</sup> *Restoule* at footnote 111

<sup>9</sup> *Ibid*, at footnote 106

spoke of the negative impact it had had on their territory.<sup>10</sup> It was following these years of advocacy that the Government appointed the Vidal-Anderson Commission, who travelled to communities across the Upper Great Lakes, where they recognized the Anishinaabe as ancient occupiers of the land with a legitimate claim of authority and jurisdiction, and wrote that according to their understanding, that ‘there would be no difficulty in making a treaty on just and mutually advantageous terms’. <sup>11</sup> It was upon the heels of the Commission’s report and upon the years of protests and advocacy by the Anishinabek Chiefs that the treaty grew. As Judge Hennessey wrote;

“From the Anishinabek perspective, the Crown had broken a promise to respect their land rights; British occupation and incursions threatened their homes, their hunting territory, their means of subsistence, and their security... human needs, security, and economic well-being, and a plea for recognition as a people in rightful ownership of their land and control over their lives. They wanted to be treated with respect and fairness. ..the Chiefs were clear that they were prepared to make a treaty to protect their interests and permit further settlement and development on terms that were fair and just.<sup>12</sup>

Judge Hennessey write that the central goal of the treaty for the Anishinabek was to renew their relationship with the Crown – a relationship which was grounded in the Covenant Chain alliance and represented through the wampum belts. For the Anishinabek of the upper Great Lakes region, the ‘treaties were sacred agreements that brought newcomers into the existing relationship [they had with] all of creation’ and notes a parallel holding in *R. v. Badger* regarding the sacred nature of treaties as well as the solemnity of the promises they contain. <sup>13</sup>

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<sup>10</sup> Ibid, footnote 107

<sup>11</sup> Ibid, footnote 128.

<sup>12</sup> Ibid at para 131

<sup>13</sup> Ibid, para 414

In *Restoule*, the Anishinabek argument was framed within the four legal principles of respect, responsibility, reciprocity and renewal. The first legal principle is *respect* and refers to respect for Anishinabek jurisdiction over the territory, authority to enter into agreements and to share use and authority of the territory, respect for their governance concepts and autonomy over their relationship with the land. The Anishinabek also asked for respect for their limited experience dealing with Euro-Canadian concepts, including alienation of the land.

*Responsibility* is taken to refer to what is owed to their bands, their clans, and their kin, as well as to the land in all of its manifestations — the animals, flora, fauna, and non-human beings with whom the Anishinabek shared the territory. This also meant ensuring that they could continue to depend on the land for shelter, medicine and spiritual well-being while remaining responsible for that land.

*Reciprocity* “refers to exchanges within relationships and holds that items of value are given with the expectation that the gift will be returned” and for the Anishinabek, were a form of recognizing mutual interdependence and sharing resources.<sup>14</sup> The treaty itself was considered the greatest gift of all - “the land and water over which countless generations of their ancestors had presided... the source of bimaadiziwin, which is to say, life in the fullest sense of the term.”<sup>15</sup> Justice Hennessey writes that ‘the Anishinabek Chiefs and leaders had every reason to expect that their “gift” attracted a reciprocal “gift”, commensurate with the value of what they had provided’.

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<sup>14</sup> Ibid, at para 257

<sup>15</sup> Ibid, at para 258

Finally, there is the concept of *renewal*. The Robinson Treaties of 1850 are descended from the initial Covenant Chain relationship. – they are a renewal of a pre-existing and ongoing relationship between the Anishinabek and the Crown. For this reason, they were not meant to be the definitive word on the relationship but rather one of many renewals of the relationship, necessary to ensure that both parties could continue to thrive in changing environments.<sup>16</sup>

### **The Art Process**

How then, to translate these concepts and histories into an artistic expression? As an uninvited guest with deep personal ties to the territories at issue in *Restoule*, how to bring historic treaties into the contemporary moment is one that I am particularly attentive to. One of the certified experts, Alan Corbiere testifies to the fact that the “covenant chain was a process not an event... requir[ing] annual meetings to maintain open communication, mutual agreement and thus, harmonious relations”. Being in constant relationship then, is how these values of respect, respect, responsibility, reciprocity and renewal are practiced.

I wanted to create a piece that echoes the spirit behind the cases that we have been reading over the course of this semester. How do you show the courage and strength of the chiefs in *Delgamuukw*, to sit before the Court and share, even with an unwilling recipient? How to capture the clarity of the Haida case, and the spiritual grounded-ness of the Haida title case Terri Lynn Williams Davidson’s current mapping work? How do you talk, through art, about the endurance

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<sup>16</sup> Ibid at para 260



of Tsleil-Watuth Nation in the Trans Mountain litigation? I wanted to show how both Indigenous and non-Indigenous people are in constant relationship and envision a path towards a more collaborative future where the four values are respected and upheld.

In trying to answer that challenge, this piece came together slowly, and in pieces. First, both canvases had to be scraped down, and made new again. I like to think that there is a metaphor there, and it made me think of Chief Justice Finch's paper 'Duty to Learn' – when he spoke about the internal and external distortions that are an effect of colonial mediation – how as non-Indigenous practitioners, we are submerged in our own point of view – one that, like my canvases, can never be made new again (no matter how hard you try). Finch CJ challenges us to let go of what our established ideas are of what constitutes 'law' – we must come with open minds and hearts.

I have tried to echo the work of Justseeds Collective by employing images that critique the settler colonial state and makes space for Indigenous sovereignty without drawing upon those visual themes that are not mine to use. Given this, I ended up creating the two pieces which together I have entitled 'Survey/Surviel.

The one on the right is called 'survey'. It has a free-hand drawing of antique surveying equipment, superimposed on top of the larger image, which is a map of Canada, stretching from the Maritimes to parts of the Prairies, and up into the Arctic. This is a section of a geologic

survey that mapped out different kinds of rock formations across the country. It was printed in 1962.

Before coming to law, I completed a graduate degree in the Geography department of the University of Western Ontario. This is where I first learned about GIS (geographic information systems) and the tensions inherent in geography. On one hand, cartographic tools played a major role in facilitating the expansion of colonialism<sup>17</sup>, while on the other Indigenous communities have made good use GIS mapping in defining their own health priorities and geographies.<sup>18</sup>

Surveying has a certain resonance for me, not only as a recovering geographer, but also in my own sense of place, as the underhandedness of the Toronto Purchase was made clear when Mississaugas of New Credit encountered a surveyor on lands that had not been included in the 1787 agreement.<sup>19</sup> The encounter itself is said to have happened on the banks of the Etobicoke Creek – a place where I spent many hours as a child playing, completely unaware of the place’s history. A similar confrontation is detailed in *Restoule*. In the spring of 1846 it was reported Chief Shingwaukonse confronted surveyors in what is now called Sault St. Marie about the surveying and mining exploration that was occurring in the absence of any treaty, setting in motion the events mentioned in the opening of this paper.<sup>20</sup> But the role of surveying seems to be shifting – it not only played

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[https://www.tandfonline.com/doi/full/10.1080/2201473X.2016.1186311?casa\\_token=CSrejeW49vQAAAAA%3A8H4qpEK69REhnXJng7jmqN7tUsHyhIA4uEaag0dBep5QdcDaM2oqjbu1K7o71UjZT2JqMkAJWXoP6YY](https://www.tandfonline.com/doi/full/10.1080/2201473X.2016.1186311?casa_token=CSrejeW49vQAAAAA%3A8H4qpEK69REhnXJng7jmqN7tUsHyhIA4uEaag0dBep5QdcDaM2oqjbu1K7o71UjZT2JqMkAJWXoP6YY)

<sup>18</sup> Chantelle Richmond’s work

<sup>19</sup> <http://mncfn.ca/wp-content/uploads/2017/04/MNCFN-Toronto-Purchase-Specific-Claim-Arriving-at-an-Agreement.pdf>

<sup>20</sup>, Letter from A. Vidal to D.B. Papineau, dated 27 April 1846, Joint Book of Primary Documents, Trial Exhibit 01-TAB-0410, transcription at Trial Exhibit 01A-TAB-0410 in *Restoule*, para 114

a role in historic treaties, but is actively used in the contemporary moment, as GIS mapping plays an important role in modern treaty making and aboriginal title litigation, including in the Haida title case. There is a power in being able to plot specific places on a map – whether that be for harvesting rights or of encounters with the supernatural. I found this twin use of the same technology by both the Crown and Indigenous communities to be an interesting testament to the role of supposedly ‘benign’ instruments.

### **Surveillance**

Just as mapping has a history of involvement with disputed land claims, so too does surveillance technology. In the past this was done through the introduction of Indian Status cards, the reserve pass system and Inuit numbered identification disks. In contemporary politics, Canadian policing and security agencies are widely acknowledged to monitor Indigenous land defenders through surveillance technologies. This second part is an acrylic landscape painting based on a photo reference taken in Trent Hills, Ontario. I chose this image because the pastoral scene, in the juxtaposition of stands of old growth trees and open fields, is a stark reminder of the waves of immigration that took place across Upper Canada in the early 1800s. Over top of this scene I have collaged a linocut image that I created of a security camera. This image is intended to represent the consistent surveillance that Indigenous people experience, even when they are simply engaging in traditional uses of the land. This theme of surveillance was one that I noticed across several of the hunting and fishing cases, as well as the social media surveillance that I have heard about for land defenders involved in the Unist’o’ten Healing Lodge. It is what I have come to think of as a para-legal tool in the state’s arsenal.

Finally, across both paintings I have placed as many butterflies as I could conceivably cut out. They track from the left to the right and are moving out the frame of the upper right-hand corner. These butterflies are meant to represent both Indigenous and non-Indigenous people in our collective struggle to resist the settler colonial state. It is also a riff on David Khang's piece, and a testament to my ongoing love of the monarch butterfly – a delicate yet powerful creature that migrates vast distances between the Great Lakes region and Central Mexico. While each butterfly is not aware of it, they are tugged by something bigger than themselves that is calls them home – a response they give not by themselves, but over generations.

When reflecting on the legacy of the *Restoule* case, and the broken promises of the Robinson Huron Treaties, as well as the current realities of Indigenous communities in Canada, I feel ashamed of my ignorance of this history and ashamed of the benefits that my ancestors as well as myself have experienced from this destruction and dispossession. Even with such a positive outcome, it is hard to feel optimistic about a ruling that, had the Crown taken seriously their fiduciary duty, would have never have been necessary in the first place. In reflecting for this piece, I read a part of Thomas King's *The Inconvenient Indian*- where he explains all the ways in which a treaty can never truly be celebrated. In reflecting on my own responsibilities that I may hold now and in the future, when I was deciding what to paint, I knew I wanted to reference something I am particularly angered by in this moment in our political history - the para-legal methods – i.e. surveillance that the state uses, alongside other legal strategies, to (forever ineffectively) quash Indigenous resistance.

I, however, do have hope - not in the capacity of the law alone to change this relationship, but for grassroots people and organizers to slowly change the direction. Just as the Canadian state uses legal strategy as only one tool in their arsenal, so too must those invested in Indigenous sovereignty. Changes in legal reasoning are impacted by both a remarkable set of facts, but also by a shift in the political consensus - that what was considered status quo will no longer do, not just in terms of Canada's relationship with Indigenous people, but also in our failure to adequately protect and live within the Earth's carrying capacity. For me, the *Restoule* decision – in making the legal history of the case, as well as the Indigenous law that underscores it public, could be a single crack in the edifice.

While this may seem to be an overly optimistic approach, I think it is also a political one. Law is a part of and influenced by a much wider conversation. It is my hope that in this moment of global uncertainty, that we can emulate the butterfly. There is strength to be found in numbers – or to borrow a phrase from immunology – there is strength in the herd immunity. A group of butterflies is known as a kaleidoscope – an image so dizzyingly complex that it fools the eye. In this metaphor it is particularly apt – within the kaleidoscope, the individual disappears and becomes a part of the collective, and even the most robust tools of surveying or surveillance are rendered powerless.